

SUPERIOR COURT OF CALIFORNIA
COUNTY OF VENTURA

Tentative Ruling

2024CUMC024712: MICHAEL LAZELLE, et al. vs MOUNTAIN VALLEY
HOMEOWNERS ASSN, et al.

07/20/2026 in Department 21

Motion to Set Aside/Vacate Judgment /Dismissal as to Freeman Mathis & Gary LLP

Tentative Rulings. Parties and counsel appearing for oral argument should address the tentative decision. Parties may submit on the tentative decision by email, with a copy to all other parties in the matter, to courtroom21@ventura.courts.ca.gov before 8:00 a.m. on the day set for the hearing, with a subject line that includes “SUBMISSION ON TENTATIVE”, Case Number, Title and Party. If fewer than all parties submit on the tentative, the hearing will proceed, and the tentative ruling is subject to change. The clerk cannot advise if you should still appear or not. The decision of whether to appear for a hearing is to be made by the parties and their counsel. (Dept. 21 Rules & Procedures, p. 4, § II.I.)

The following is a statement of the Court’s tentative ruling. The Court may adopt, modify or reject the tentative ruling after hearing. The tentative ruling has no legal effect unless and until adopted by the Court.

Motion: Plaintiffs’ Motion to Vacate Judgment/Dismissal With Prejudice Entered in Favor of Freeman Mathis & Gary LLP (*Opposed*)

Tentative Ruling: Plaintiffs Michael and Sherri LaZelle’s motion to vacate the judgment entered in favor of Freeman Mathis & Gary, LLP (“FMG”) is DENIED.

Plaintiffs’ additional requests to reinstate their claims, strike FMG’s prevailing-party status, issue an order to show cause, prohibit further filings, grant further leave to amend, or stay enforcement are DENIED.

The Court orders the May 13, 2026 judgment corrected nunc pro tunc by deleting the reference to CCP § 437c and substituting CCP § 581(f)(2). The judgment otherwise remains unchanged.

Counsel for FMG is to give notice of this ruling within two (2) court days.

Discussion:

FMG’s demurrer was sustained with leave to amend, Plaintiffs did not timely amend, their later motion for leave to amend was denied, and FMG requested dismissal. CCP § 581(f)(2) therefore authorized dismissal. The reference to CCP § 437c was an inadvertent clerical error that may be corrected under CCP § 473(d). (*Estate of Careaga* (1964) 61 Cal.2d 471, 474-475.)

Plaintiffs have not established that the judgment is void under CCP § 473(d). An entity’s suspension generally concerns litigation capacity, not the court’s fundamental jurisdiction, and does not render a judgment void. (*Traub Co. v. Coffee Break Service, Inc.* (1967) 66 Cal.2d 368,

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370-371; *Center for Self-Improvement & Community Development v. Lennar Corp.* (2009) 173 Cal.App.4th 1543, 1552-1553.)

CCP § 663 also does not provide relief because a judgment following a demurrer ordinarily must be challenged by appeal, not by a motion to vacate under that statute. (*Payne v. Rader* (2008) 167 Cal.App.4th 1569, 1574-1575.)

Plaintiffs have not produced a Franchise Tax Board or Secretary of State record establishing an actual tax suspension or forfeiture. The absence of a certificate of revivor is not proof of suspension. Further, suspension of FMG's State Bar LLP certification may affect its LLP status or liability protections, but it does not establish that the underlying partnership ceased to exist or lacked capacity to defend the action. The evidence concerning FMG's Secretary of State filings and agent for service likewise does not render the judgment void.

In sum, Plaintiffs Michael and Sherri LaZelle's motion to vacate the judgment entered in favor of Freeman Mathis & Gary, LLP ("FMG") is DENIED.

Plaintiffs' additional requests to reinstate their claims, strike FMG's prevailing-party status, issue an order to show cause, prohibit further filings, grant further leave to amend, or stay enforcement are DENIED.